

MUTUAL NON-DISCLOSURE AGREEMENT

Parties

This Mutual Non-Disclosure Agreement ("Agreement") is entered into on _____ between Alpha Innovations Private Limited, having its registered office at _____ ("Party A"), and Beta Digital Solutions Private Limited, having its registered office at _____ ("Party B"). The parties are exploring a potential business partnership and wish to exchange confidential information solely for that purpose.

1. Purpose

The parties agree to disclose certain confidential information to evaluate and discuss a potential commercial relationship. Each party may act as a Disclosing Party or Receiving Party under this Agreement.

2. Confidential Information

"Confidential Information" means any non-public technical, commercial, financial, operational, strategic, customer, supplier, software, product, business, or other information disclosed in written, electronic, oral, visual, or other form that is identified as confidential or would reasonably be understood to be confidential given its nature and the circumstances of disclosure.

3. Permitted Use

The Receiving Party shall use Confidential Information solely for evaluating the proposed business relationship and shall protect such information using at least the same degree of care it applies to its own confidential information, and in no event less than a reasonable degree of care. Access shall be limited to employees, directors, professional advisers, and contractors who have a legitimate need to know and are bound by appropriate confidentiality obligations.

4. Exclusions

Confidential Information does not include information that: (a) is or becomes publicly available without breach of this Agreement; (b) was lawfully known to the Receiving Party before disclosure; (c) is independently developed without reference to the disclosed information; or (d) is lawfully obtained from a third party without confidentiality restrictions.

5. Legally Required Disclosure

If disclosure is required by applicable law, regulation, or court or governmental order, the Receiving Party shall, where legally permissible, promptly notify the Disclosing Party and disclose only the portion legally required while taking reasonable steps to preserve confidentiality.

6. Return or Destruction

Upon written request or upon conclusion of discussions, the Receiving Party shall promptly return or securely destroy the Disclosing Party's Confidential Information, except where retention is required by applicable law or routine backup processes.

7. Intellectual Property

Nothing in this Agreement grants any license or transfers any ownership of intellectual property or other proprietary rights. All Confidential Information remains the property of the Disclosing Party.

8. Term

This Agreement becomes effective on the date first written above. The confidentiality obligations relating to Confidential Information disclosed under this Agreement shall continue for three (3) years from the date of each respective disclosure, unless otherwise agreed in writing.

9. Governing Law and Arbitration

This Agreement shall be governed by the laws of India. Any dispute arising out of or relating to this Agreement that cannot be resolved through good-faith discussions shall be finally resolved by arbitration in accordance with the Arbitration and Conciliation Act, 1996. The seat and venue of arbitration shall be Bengaluru, India. The arbitral tribunal shall consist of a sole arbitrator appointed by mutual agreement of the parties. Proceedings shall be conducted in English.

10. General

This Agreement constitutes the entire understanding between the parties concerning its subject matter. Any amendment must be in writing and signed by both parties. If any provision is held unenforceable, the remaining provisions shall continue in effect to the maximum extent permitted by law.

Signatures

Party A: Authorized Signatory: _____ Party B: Authorized Signatory: _____
Date: _____